



**PAVAN PARIKH
HAMILTON COUNTY CLERK OF COURTS**

COMMON PLEAS DIVISION

**ELECTRONICALLY FILED
March 23, 2023 03:34 PM
PAVAN PARIKH
Clerk of Courts
Hamilton County, Ohio
CONFIRMATION 1299695**

BRANDY SHAMONE BURRIS

A 2301207

vs.

VANDALIA BUS LINES INC

**FILING TYPE: INITIAL FILING (IN COUNTY) WITH NO JURY
DEMAND**

PAGES FILED: 4

Robert B. Acciani - 0096025
Attorney for Plaintiff

**COURT OF COMMON PLEAS
CIVIL DIVISION
HAMILTON COUNTY, OHIO**

BRANDY SHAMONE BURRIS

1111 Elberon Avenue
Cincinnati, Ohio 45205

Plaintiff

vs.

VANDALIA BUS LINES, INC.

SERVE: Dennis Wayne Streif
312 W. Morris Street, POB 400
Caseyville, Illinois 62232

and

DANIEL SILENCIEUX

10817 Carroll Wood Wat Street
St. Louis, Missouri 63128

and

OHIO DEPARTMENT OF MEDICIAD

SERVE: Robert Byrne
30 East Broad Street, 14th Floor
Columbus, Ohio 43215

Defendants

: Case #:

:

:

: Judge:

:

:

:

:

COMPLAINT

:

:

:

:

:

:

:

:

:

:

:

:

:

:

:

:

:

:

:

:

FIRST CAUSE OF ACTION

1. On or about March 25, 2021, Plaintiff Brandy Shamone Burris was operating a motor vehicle on Burnett Avenue at the intersection of William Howard Taft Road and Burnet Avenue, in the city of Cincinnati, Hamilton County, Ohio.

2. On or about March 25, 2021, Defendant Daniel Silencieux was operating a commercial bus vehicle on Burnett Avenue at the intersection of William Howard Taft Road and Burnet Avenue, in the city of Cincinnati Hamilton County, Ohio.

3. Defendant Daniel Silencieux carelessly and without due regard for the safety of others operated this vehicle in a negligent manner, failed to maintain reasonable control, traveled outside of his lane and into Plaintiff's lane of travel thereby causing a collision between the vehicle which Defendant was driving and the vehicle which Plaintiff Brandy Shamone Burris was driving.

4. As a direct and proximate result of Defendant Daniel Silencieux's negligence, Plaintiff Brandy Shamone Burris has incurred temporary and permanent injuries; has endured great pain and suffering of both mind and body and will continue to endure such pain and suffering in the future; has incurred medical expenses in an undetermined amount and will continue to incur medical expenses in the future; has incurred lost wages in an undetermined amount and will continue to incur lost wages in the future; and has suffered damages for the lost enjoyment of life.

5. On or about March 25, 2021, Defendant Daniel Silencieux was an agent and/or employee of Defendant Vandalia Bus Lines, Inc. and acting within the course, scope and furtherance of such agency and/or employment when Defendant Daniel Silencieux was involved in the motor vehicle collision described in paragraphs 3 thru 4.

6. Defendant Vandalia Bus Lines, Inc. is responsible for all damages caused to Plaintiffs by Defendant Daniel Silencieux, as Defendant Vandalia Bus Lines, Inc. is the principal to the agency of Defendant Daniel Silencieux for his acts at the time of the aforementioned collision and also pursuant to the Doctrine of *Respondeat Superior*.

7. Defendant Vandalia Bus Lines, Inc. was negligent, careless and reckless in the hiring, training, supervision and retention of its employee/agent Defendant Daniel Silencieux.

8. The carelessness, negligence and recklessness of Defendant Vandalia Bus Lines, Inc., in the hiring, training, supervision and retention of Defendant Daniel Silencieux caused or permitted the conditions to occur that caused the collision resulting in the injuries sustained by Plaintiff Brandy Shamone Burris.

9. As a direct and proximate result of Defendant Vandalia Bus Lines, Inc.'s negligence, Plaintiff Brandy Shamone Burris has incurred temporary and permanent injuries, has endured great pain and suffering of both mind and body and will continue to endure such pain and suffering in the future; has incurred permanent and substantial physical deformity; has incurred medical expenses in an undetermined amount and will continue to incur medical expenses in the future; has incurred lost wages in an undetermined amount and will continue to incur lost wages in the future; and has suffered damages for the lost enjoyment of life.

SECOND CAUSE OF ACTION

10. Plaintiff realleges the allegations contained in the First Causes of Action as if fully rewritten.

11. Upon information and belief Defendant Ohio Department of Medicaid has paid certain expenses incurred by Plaintiff Brandy Shamone Burris as a result of the negligence of Defendant Daniel Silencieux and Defendant Vandalia Bus Lines, Inc.

12. Defendant Ohio Department of Medicaid claims a subrogated interest in the proceeds of this litigation.

13. Plaintiffs state that Defendant Ohio Department of Medicaid must set forth its interest herein or forever be barred.

WHEREFORE Plaintiff demand for judgment against Defendant Daniel Silencieux and Defendant Vandalia Bus Lines, Inc., jointly and severally, in an undetermined amount in excess

of \$25,000.00 (Twenty-Five-Thousand-Dollars), prejudgment interest to be determined by the Court plus costs and all other relief to which she may be entitled. In addition, Plaintiff requests that Defendant Ohio Department of Medicaid set forth their subrogated claim or forever be barred.

Respectfully Submitted,
O'CONNOR, ACCIANI & LEVY LPA



Robert B. Acciani - 0096025
Attorney for Plaintiff
600 Vine Street Suite 1600
Cincinnati, Ohio 45202
Phone: 513-842-1952
Fax: 513-768-4431
Email: bba@oal-law.com